



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**SRI LANKA INSTITUTE OF STRATEGIC
STUDIES ACT, No. 45 OF 2000**

[Certified on 10th August, 2000]

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Sri Lanka Institute of Strategic Studies
Act, No. 45 of 2000

[Certified on 10th August, 2000]

L.D.—O.34/99.

AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF THE SRI LANKA
INSTITUTE OF STRATEGIC STUDIES ; AND FOR MATTERS
CONNECTED THEREWITH OR INCIDENTAL THERETO

BE it enacted by the Parliament of the Democratic Socialist
Republic of Sri Lanka as follows :—

1. This Act may be cited as the Sri Lanka Institute of Strategic Studies Act, No. 45 of 2000. Short title.
2. There shall be established an Institute to be called the Sri Lanka Institute of Strategic Studies (hereinafter referred to as “the Institute”). The Institute shall by the name assigned to it by this section, be a body corporate with perpetual succession and a common seal and may sue and be sued in such name. Establishment of Sri Lanka Institute of Strategic Studies.
3. (1) The administration and management of the affairs of the Institute shall be vested in a Board of Management (hereinafter referred to as “the Board”). Board of Management.

(2) The Board shall consist of the following members appointed by the President :—
 - (a) the Secretary to the Ministry of the Minister in charge of the subject of Defence ;
 - (b) the Secretary to the Ministry of the Minister in charge of the subject of Foreign Affairs ; and
 - (c) five other members appointed from among persons who have had experience and shown capacity in defence, diplomacy, international relations or other related fields.
(3) The President shall appoint one of the members of the Board as the Chairman of the Board.

(4) The provisions of the Schedule to this Act shall apply in relation to the appointment and terms of office of members of the Board, the remuneration payable to such members, the meetings of the Board, and the seal of the Institute.

**Functions of the
Institute.**

4. The functions of the Institute shall be—

- (a) to provide necessary information and data for consideration by the relevant authorities, in the formulation of national strategy ;
- (b) to conduct research and studies on issues relating to defence and national security, with a view to utilizing the results of such research and studies for the formulation and evaluation of policy on defence, national security and international relations ;
- (c) to promote research by government and non-government institutions on issues relating to defence and national security, with a view to ensuring the availability of relevant and reliable information on these subjects ;
- (d) to liaise with government and non-government institutions conducting research on issues relating to defence and national security, and to provide, for this purpose, a forum for the discussion and evaluation of such research ;
- (e) to conduct research on social, political and economic issues insofar as they relate to, or impact on, defence or national security ;
- (f) to promote discussion of, and the exchange of information on, military strategy, techniques of warfare, international relations and legal systems ;
- (g) to build up a body of trained personnel equipped to undertake research and studies on matters relating to defence and national security ;
- (h) to establish a repository of information on matters relating to defence and national security ;

5. For the purpose of effectually discharging its' functions, the Institute shall have the power—

Powers of the
Institute.

- (a) to acquire and hold, any property, movable or immovable, and to sell, lease, mortgage, exchange or otherwise dispose of the same ;
- (b) to open and maintain, current, savings or deposit accounts, in any bank or banks ;
- (c) to enter into all such contracts as may be necessary for the discharge of its functions ;
- (d) to invest its funds in such securities as it may determine ;
- (e) to erect, equip and maintain, libraries documentation centres and archives for research purposes ;
- (f) to establish and maintain a Secretariat ;
- (g) to collect, print and publish, reports, periodicals and papers on subjects relevant to it's functions ;
- (h) to hold lectures, seminars and workshops on subjects relevant to it's functions ;
- (i) to co-operate and collaborate with, institutions in Sri Lanka or abroad, discharging functions similar to those of the Institute ; and
- (j) to do all such other things as are necessary, or incidental, to the discharge of functions of the Institute.

PART II

STAFF OF THE INSTITUTE

6. (1) There shall be a Director-General of the Institute who shall be appointed by the President in consultation with the Board.

Director-General

(2) The Director-General shall subject to the directions of the Board, be charged with administration of the affairs and the appointment and disciplinary control of the staff of the Institute. He shall also function as the Secretary to the Board and be responsible for the implementation of the decisions of the Board, and shall discharge such other functions as may be assigned to him by the Board.

(3) The Director-General shall be entitled to be present and express his views at any meeting of the Board but shall not be entitled to vote thereat.

Appointment &c.
of the staff of the
Institute.

7. (1) The Institute may, subject to the provisions of this Act—

- (a) appoint such officers and servants as it considers necessary for the discharge of its functions, and may exercise disciplinary control over, or dismiss, such officers or servants ;
- (b) fix the rates at which such officers and servants shall be remunerated ;
- (c) determine the terms and conditions of service of such officers or servants ; and
- (d) establish and regulate provident funds or schemes for the benefit of such officers or servants and make contributions to any such fund or scheme.

Appointment of
public officers to
the staff of the
Institute.

8. (1) At the request of the Board, any officer in the public service may, with the consent of that officer and of the Secretary to the relevant Ministry or Ministries be temporarily appointed to the staff of the Institute for such period as may be determined by the Board, with like consent, or with like consent be permanently appointed to such staff.

(2) Where any officer in the public service is temporarily appointed to the staff of the Institute the provisions of subsection (2) of section 14 of the National Transport Commission Act, No. 37 of 1991 shall, *mutatis mutandis*, apply to, and in relation to, him.

(3) Where any officer in the public service is permanently appointed to the staff of the Institute the provisions of subsection (3) of section 14 of the National Transport Commission Act, No. 37 of 1991 shall, *mutatis mutandis*, apply to, and in relation to, him.

(4) Where the Institute employs any person who has entered into a contract with the Government to serve the Government for a specified period, any period of service to the Institute by such person shall be regarded as service to the Government, for the purpose of discharging the obligations of such contract.

(5) At the request of the Board any officer or servant of any Higher Educational Institution may with the consent of such officer or servant and the principal executive officer of that Higher Educational Institution, be temporarily appointed to the staff of the Institute for such period as may be determined by the Board with like consent or be permanently appointed to such staff, on such conditions, including those relating to pension and provident fund rights, as may be agreed upon by the Board and such principal executive officer.

(6) Where any officer or servant of any Higher Educational Institution is temporarily appointed to the staff of the Institute he shall be subject to the same disciplinary control as any other member of such staff.

(7) In this section, "Higher Educational Institution" and "principal executive officer" have the respective meanings assigned to them by the Universities Act, No. 16 of 1978.

PART III

FINANCE

9. (1) The Institute shall have its own Fund.

Fund of the
Institute.

(2) There shall be paid into the Fund of the Institute —

- (a) all such sums of money as may be voted from time to time, by Parliament for the use of the Institute ;
- (b) all such sums of money as may be received by the Institute in the exercise, and discharge of its powers and functions ;
- (c) all such sums of money as may be received by the Institute by way of donations, gifts and grants from any source whatsoever ;

(3) There shall be paid out of the Fund of the Institute all sums of money required to defray any expenditure incurred by the Institute in the exercise and discharge of its powers, and functions under this Act, and any other expense which is authorized or required to be paid out of the Fund of the Institute by any other provision of this Act.

Financial year and the audit of the accounts of the Institute.

10. (1) The financial year of the Institute shall be the calendar year.

(2) The Board shall cause proper books of accounts to be kept of the income and expenditure, assets and liabilities and all other transactions of the Institute.

(3) The provisions of Article 154 of the Constitution relating to the audit of the accounts of public corporations shall apply to the audit of the accounts of the Institute.

PART IV

GENERAL

Directions.

11. The President may after consultation with the Board, from time to time, give the Board such general or special directions, in writing as to the exercise and discharge by the Board of its powers and functions in so far as they relate to matters of policy and the Board shall give effect to such directions.

12. All members of the Board and officers and servants of the Institute shall be deemed to be public servants within the meaning of, and for the purposes of the Penal Code.

Members, officers and servants of the Institute deemed to be public servants.

13. The Institute shall be deemed to be a scheduled institution within the meaning of the Bribery Act and the provisions of that Act shall be construed accordingly.

The Institute deemed to be a scheduled institution within the meaning of the Bribery Act.

14. (1) Every member of the Board and all officers and servants of the Institute shall before entering upon his duties sign a declaration pledging himself to observe strict secrecy respecting all matters connected with the working of the Institute, and shall by such declaration pledge himself not to reveal any matter which may come to his knowledge in the discharge of his functions, except—

Declaration of secrecy.

- (a) when required to do so by a court of law ; and
- (b) in order to comply with any of the provisions of this Act.

(2) A member of the Board or officer or servant of the Institute who discloses any information obtained by him in connection with the discharge of his functions under this Act, to any person for any purpose other than for a purpose authorized by subsection (1), shall be guilty of an offence under this Act and shall on conviction after summary trial by a Magistrate be liable to a fine not exceeding ten thousand rupees.

15. (1) No suit or prosecution shall lie—

- (a) against the Institute for any act which in good faith is done by the Institute under this Act ; or

Protection for action taken under this Act or on the direction of the Board.

- (b) against any member of the Board or any officer, or servant of the Institute for any act which in good faith is done by him under this Act, or on the direction of the Board.

(2) Any expenses incurred by the Institute in any suit or prosecution brought by or against the Institute before any court shall be paid out of the Fund of the Institute and any costs paid to, or recovered by, the Institute in any such suit or prosecution, shall be credited to the Fund of the Institute.

(3) Any expenses incurred by any such person as is referred to in paragraph (b) of subsection (1) in any suit or prosecution brought against him before any court in respect of any act which is done by him under this Act or on the direction of the Board shall, if the court holds that such act was done in good faith, be paid out of the Fund of the Institute unless such expense is recovered by him in such suit or prosecution.

State property both movable and immovable to be made available to the Institute.

16. (1) Where any immovable property of the State is required for any purpose of the Institute such purpose shall be deemed to be a purpose for which a special grant or lease of such property may be made under section 6 of the State Lands Ordinance, and accordingly, the provisions of that Ordinance shall apply to a special grant or lease of such property to the Institute.

(2) Where any movable property of the State is required for the purpose of the Institute the Minister who has authority and control over such property may, by Order published in the Gazette, transfer to and vest in the Institute the possession and use of such movable property.

Annual Report.

17. The Board shall at the end of each financial year publish a report of the activities of the Institute during the year and it shall be submitted to the President for approval. On being approved by the President such report shall be laid before Parliament.

18. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

The Sinhala text to prevail in case of any inconsistency.

19. In this Act unless the context otherwise requires—

Interpretation.

“local authority” means any Municipal Council, Urban Council or Pradeshiya Sabha and includes any Authority created and established by or under any law to exercise, perform and discharge, powers, duties and functions corresponding to, or similar to, the powers, duties and functions, exercised, performed and discharged by any such Council or Sabha ;

“Provincial Council” means a Provincial Council established by Chapter XVIIIA of the Constitution.

SCHEDULE

[Section 3(4)]

PROVISIONS RELATING TO THE MEMBERS OF THE BOARD

1. A person shall be disqualified from being appointed or continuing as a member of the Board—

- (a) if he is, or becomes, a Member of Parliament, any Provincial Council or any local authority ; or
- (b) if he is not, or ceases to be a citizen of Sri Lanka ; or
- (c) if he is under any law in force in Sri Lanka or in any other country, found or declared to be of unsound mind ; or
- (d) if he is serving, or has served, a sentence of imprisonment imposed by any court in Sri Lanka or any other country ; or
- (e) if he had been dealt with under the provisions of section 303 or section 306 of the Code of Criminal Procedure Act, No. 15 of 1979.

2. Every member of the Board shall, unless he vacates office earlier by death, resignation or removal, hold office for a term of three years from the date of his appointment and shall unless he has been removed from office, be eligible for reappointment :

Provided that a member appointed in place of a member who had vacated office, by death, resignation or removal, shall hold office for the unexpired term of office of the member whom he succeeds.

3. The President may, by Order published in the Gazette, and for reasons assigned, remove any member of the Board from office. A member in respect of whom an Order is made under this paragraph shall be deemed to have vacated office on the date of publication of the Order in the Gazette.

4. A member of the Board may at any time resign from office by letter to that effect addressed to the President and such resignation shall take effect upon it being accepted by President in writing.

5. In the event of the vacation of office by death, resignation or removal by any member of the Board, the President may having regard to the provisions of subsection (2) of section 3 appoint any other person in place of such member. Any person so appointed in place of such member, shall hold office during the unexpired part of the term of office of the member whom he succeeds.

6. Where a member of the Board by reason of illness, infirmity or absence from Sri Lanka for a period not less than three months, is temporarily unable to perform his duties it shall be the duty of such member to inform the President in writing of such inability. Thereupon, the President may having regard to the provisions of subsection (2) of section 3 appoint some other person to act in his place during such period.

7. The members of the Board may be paid such remuneration out of the Fund of the Institute as the President may, with the concurrence of the Minister in charge of the subject of Finance, determine.

8. (1) The Chairman of the Board (hereinafter referred to as "the Chairman") shall, if present, preside at every meeting of the Board. In the absence of the Chairman from any such meeting, the members present shall elect one of the members present, to preside at such meeting.

(2) The quorum for any meeting of the Board shall be three members.

(3) The person presiding at any meeting of the Board shall, in addition to his own vote, have a casting vote.

(4) Subject to the provisions of this paragraph, the Board may regulate the procedure in regard to the meetings of the Board and the transaction of business at such meetings.

9. No Act, decision or proceeding of the Board shall be deemed to be invalid by reason only of the existence of any vacancy therein or any defect in the appointment of any member thereof.

10. (1) The seal of the Institute may be determined and devised by the Board and may be altered in such manner as may be determined by the Board.

(2) The seal of the Institute shall be in the custody of such person as the Board may decide from time to time.

(3) The seal of the Institute shall not be affixed to any instrument or document except with the sanction of the Board and in the presence of the Director-General of the Institute and one member of the Board who shall sign the instrument or document in token of their presence.

(4) The Board shall maintain a register of the instruments and documents to which the seal of the Institute has been affixed.

11. (1) If the Chairman is, by reason of illness or absence from Sri Lanka, temporarily unable to perform the duties of his office, the President may appoint another member of the Board to act in his place.

(2) The President may, for reasons assigned and by Order published in the Gazette, remove the Chairman from the office of Chairman.

(3) The Chairman may at any time resign from the office of Chairman by a letter addressed to the President. Such resignation shall take effect upon it being accepted by the President in writing.

(4) Subject to the provisions of sub-paragraphs (2) and (3), the term of office of the Chairman shall be his period of membership of the Board.

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